

CHAPTER 45*Pensions (Increase) Act, 1952***ARRANGEMENT OF SECTIONS****Section**

1. Increase of pensions specified in First Schedule.
2. Widows' and children's pensions under schemes relating to firemen and police firemen, etc.
3. Application of enactments authorising corresponding increases.
4. Supplementary provisions.
5. Financial provisions.
6. Short title and extent.

SCHEDULES:

First Schedule—Pensions which may be increased under section one of this Act.

Second Schedule—Rate of increase of pensions.

Third Schedule—Provisions of Pensions (Increase) Act, 1944, applied to this Act.

An Act to authorise certain increases in the case of pensions to which the Pensions (Increase) Acts, 1944 and 1947, apply, and of certain other pensions.

[1st August, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, any pension specified in the First Schedule to this Act may, in respect of any period after the thirtieth day of September, nineteen hundred and fifty-two, be increased by the pension authority to the extent prescribed by the Second Schedule to this Act. Increase of pensions specified in First Schedule.

(2) A pension shall not be increased under this section unless the pension authority are satisfied that the income of the pensioner does not exceed, in the case of a pensioner who is married or has at least one dependant, five hundred and fifty pounds a year, and in the case of any other pensioner, four hundred and twenty-five pounds a year.

(3) No increase shall be made under this section in the case of a pension beginning after the thirty-first day of March, nineteen hundred and fifty-two.

2.—(1) An order of the Secretary of State under section twenty-six of the Fire Services Act, 1947, varying a Firemen's Pension Scheme in force under that section may provide for increasing any pension payable under the Scheme, not being a pension to which Part II of the First Schedule to this Act applies, by an amount not exceeding the amount of the increase which would Widows' and children's pensions under schemes relating to firemen and police firemen, etc.

be authorised by section one of this Act if that pension were a pension to which the said Part II applies.

(2) For the purposes of any such order as aforesaid, a pension beginning at any time before the date on which the order comes into force, being a pension of which the amount is calculated otherwise than by reference to the remuneration of the person in respect of whom it is payable, may be treated as if it had begun before the first day of April, nineteen hundred and forty-eight; and any such order may contain such provisions as appear to the Secretary of State to be necessary to enable a pensioner to whom a pension has been granted at the higher of two different rates to receive a pension at the higher of those rates after taking into account the increase (if any) conferred in relation to each of those rates by virtue of the order or of the Pensions (Increase) Acts, 1944 and 1947.

(3) The Secretary of State may make regulations for increasing any of the following pensions, that is to say—

- (a) a pension payable by a local authority (otherwise than under a Firemen's Pension Scheme) in respect of service as a professional fireman as defined by the Fire Brigade Pensions Act, 1925, or in respect of service which, by or under any enactment, is treated as approved service in a fire brigade, not being a pension to which Part II of the First Schedule to this Act applies;
- (b) a pension payable under the Police Pensions Act, 1921, to the widow or a child of a person to whom the National Fire Service (Preservation of Pensions) (Police Firemen) Regulations, 1941, applied at the time of his death or retirement,

to the like extent as is authorised by subsection (1) of this section in the case of a pension to which that subsection applies; and subsection (2) of this section shall apply to any such regulations as they apply to an order made by virtue of the said subsection (1).

(4) Any order or regulations made by virtue of the foregoing provisions of this section, and any regulations made within one year after the passing of this Act—

- (a) under section one of the Police Pensions Act, 1948;
- (b) by Order in Council under the Special Constables Act, 1914;
- (c) by order under the Metropolitan Police Staff (Superannuation) Acts, 1875 to 1931, as originally enacted or as applied or extended by any subsequent enactment,

for increasing any pensions to which those regulations apply, may be made so as to take effect from such date, whether before

or after the making of the order or regulations, as may be specified therein, not being earlier than the first day of October, nineteen hundred and fifty-two.

(5) The power of the Secretary of State to make regulations under subsection (3) of this section shall be exercisable by statutory instrument; and any statutory instrument containing such regulations shall be subject to annulment in pursuance of a resolution of either House of Parliament.

3.—(1) The provisions of the following enactments, that is to say—

Application of
enactments
authorising
corresponding
increases.

- (a) subsection (3) of section five of the Superannuation Act, 1946 (which enables the Treasury to confer on civil servants who are subject to any superannuation scheme mentioned in that section benefits corresponding to the increases provided by the Pensions (Increase) Act, 1944);
- (b) section five of the Pensions (Increase) Act, 1947 (which enables the Treasury to authorise the payment, in the case of pensions under schemes not falling within the Pensions (Increase) Act, 1944, of the like increases as would be payable if they were specified in the First Schedule to the last-mentioned Act);
- (c) subsection (2) of section five of the Superannuation (Miscellaneous Provisions) Act, 1948 (which enables the Treasury to provide, in the case of pensions in respect of service to His Majesty in India, for increases corresponding with those authorised by the Pensions (Increase) Act, 1947),

shall apply in relation to any increase authorised by section one of this Act as they apply to the increases authorised by the said Act of 1944 or the said Act of 1947, as the case may be, and accordingly shall have effect as if any reference therein to sections one and two of the said Act of 1944, or to the said Act of 1947 included a reference to section one of this Act, and as if any reference to the First Schedule to the said Act of 1944 included a reference to the First Schedule to this Act.

(2) In relation to any increase authorised by this Act, subsection (2) of section five of the Pensions (Increase) Act, 1947, shall have effect as if for the reference to the passing of that Act there were substituted a reference to the thirtieth day of September, nineteen hundred and fifty-two, and subsection (2) of section five of the Superannuation (Miscellaneous Provisions) Act, 1948, shall have effect as if for the words from "any period" to "nineteen hundred and forty-six" there were substituted the words "any period beginning after the thirtieth day of September, nineteen hundred and fifty-two".

Supplementary
provisions.

4.—(1) For the purposes of this Act a pension shall be deemed to begin—

- (a) where the pension is granted under any enactment in consideration of the surrender of part of another pension, on the day from which the surrender takes effect;
- (b) where the amount of the pension is computed by reference to remuneration received during any period of service, or would be so computed apart from any provision specifying a fixed sum as the minimum rate of the pension, on the day following the last day of that service;
- (c) in any other case, on the day following the last day of the service in respect of which the pension is payable, whether or not the pension accrues from that day.

(2) In calculating for the purpose of the Pensions (Increase) Acts, 1920 and 1924, or the Pensions (Increase) Acts, 1944 and 1947, the means of any pensioner or the amount of any pension, any increase for which provision is made by this Act shall be disregarded; and no account shall be taken of any such increase in ascertaining the rate of the superannuation allowance of any person for the purposes of any pension granted under Part I or Part II of the Superannuation Act, 1949.

(3) Where a pension granted under Part I or Part II of the Superannuation Act, 1949, enures for the benefit of more than one child or dependant, the pension shall be treated for the purposes of this Act as a number of separate pensions equal to the number of those children or dependants; and the amount of each such pension shall be deemed for those purposes to be a sum ascertained—

- (a) where the whole of the pension is paid to the same person, by dividing the amount of the pension by the number of children or dependants;
- (b) where different parts of the pension are paid to different persons, by dividing each part by the number of children or dependants for whose benefit that part is so paid.

(4) The provisions of the Pensions (Increase) Act, 1944, specified in the first column of the Third Schedule to this Act (which relate to the matters respectively set out in the second column of that Schedule) shall apply for the purposes of this Act, and accordingly shall have effect—

- (a) as if any reference to section one of that Act or to the Second Schedule thereto included a reference to section one of this Act or to the Second Schedule to this Act;
- (b) as if any reference to Part II of the First Schedule to that Act included a reference to Part II of the First Schedule to this Act; and

(c) as if any other reference to that Act included a reference to this Act.

(5) Subsection (1) of section three of the said Act of 1944 shall have effect, in its application to this Act by virtue of the last foregoing subsection, as if in paragraph (a) (which provides for disregarding the first fifty-two pounds a year of a pensioner's other income) for the words "fifty-two pounds", there were substituted the words "one hundred and four pounds".

Subsection (5) of section one of the said Act of 1944 shall have effect, in its application to this Act by virtue of the last foregoing subsection, as if for the words "fifty-two pounds" there were substituted the words "one hundred and four pounds".

(6) Any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by or under any subsequent enactment.

5.—(1) There shall be defrayed out of moneys provided by **Financial** Parliament— **provisions.**

(a) any expenditure incurred in respect of the increase in accordance with this Act of any pension specified in Part I of the First Schedule to this Act;

(b) any increase attributable to provisions of this Act in the sums payable out of moneys so provided under any other enactment.

(2) Where any such pension as is specified in paragraph 1 of Part II of the said First Schedule is increased under this Act, the cost of the increase shall be defrayed by the pension authority; but where the pension authority are not the last employing authority, the last employing authority shall reimburse the cost of the increase to the pension authority.

(3) For the purposes of this section "the last employing authority" has the meaning assigned to it by subsection (3) of section five of the Pensions (Increase) Act, 1944; and any question who are the last employing authority shall be determined in accordance with subsection (4) of that section.

(4) Nothing in this section shall affect the operation, in relation to any increase authorised by this Act, of the provisions of section fourteen of the Police Act, 1890, and section ten of the Police Pensions Act, 1921, as to the payment of pensions partly out of the police fund and partly out of moneys provided by Parliament.

6.—(1) This Act may be cited as the Pensions (Increase) Act, **Short title** **and extent.** 1952.

(2) Except for the purpose of the increase of pensions payable under the Superannuation Acts, 1834 to 1950, under the enactments relating to the pensions of the Royal Irish Constabulary or under section twenty-nine of the Finance Act, 1932, this Act shall not extend to Northern Ireland.

SCHEDULES**FIRST SCHEDULE**

Sections 1, 2, 3,
5.

**PENSIONS WHICH MAY BE INCREASED UNDER SECTION ONE
OF THIS ACT**

PART I*Pensions payable by government departments*

1. A pension payable under the Superannuation Acts, 1834 to 1950.
2. A pension payable under the Elementary School Teachers (Superannuation) Acts, 1898 to 1912.
3. A pension payable under the Teachers (Superannuation) Acts, 1918 to 1946, or the Education (Scotland) Acts, 1939 to 1949, not being a pension payable under paragraph (b) of subsection (3) of section fourteen of the Teachers (Superannuation) Act, 1925.
4. A pension payable under the enactments relating to the pensions of the Royal Irish Constabulary or payable by a Secretary of State under the Police (Overseas Service) Act, 1945, or the Police Pensions Act, 1948, to a person who at the time of his retirement was engaged as mentioned in subsection (1) of section one of the said Act of 1945, or granted in consideration of the surrender of part of such a pension.
5. A pension payable under section twenty-nine of the Finance Act, 1932, section sixty of the Finance (No. 2) Act, 1945, or section sixty-two of the Finance Act, 1946.
6. A pension payable by the Minister of Health under section six of the National Health Service Act, 1946, or in pursuance of regulations made under section sixty-seven or section sixty-eight of that Act.
7. A pension payable by the Secretary of State under section six of the National Health Service (Scotland) Act, 1947, or in pursuance of regulations made under section sixty-six or section sixty-seven of that Act.
8. A pension payable by the Minister of National Insurance in pursuance of regulations made under section sixty-seven of the National Insurance Act, 1946, or of rules made under section three of the Superannuation (Miscellaneous Provisions) Act, 1948, not being a pension to which paragraph 1 of this Part of this Schedule applies.
9. A pension payable under Part I of the Administration of Justice (Pensions) Act, 1950, out of the Consolidated Fund of the United Kingdom or moneys provided by Parliament.

PART II*Pensions payable by local authorities, etc.*

1. A pension payable by any local authority solely in respect of local government service as defined for the purposes of paragraph 1 of Part II of the First Schedule to the Pensions (Increase) Act, 1944, not being a pension payable in accordance with any such scheme as is mentioned in paragraph 3 of this Part of this Schedule, or otherwise payable in respect of any such service as is mentioned in that paragraph.
2. A pension payable under the Police Pensions Act, 1948, the Special Constables Act, 1914, or any enactment repealed by the said Act of 1948 or by the Police Pensions Act, 1921, not being a pension

specified in paragraph 4 of Part I of this Schedule or a pension (other than a pension granted in consideration of the surrender of part of another pension) payable to the widow or a child of the person in respect of whom it is granted.

1ST SCH.
—cont.

3. A pension payable to a whole-time member of a fire brigade in accordance with any scheme in force under section twenty-six of the Fire Services Act, 1947, or otherwise payable by a local authority to any person in respect of his services as a professional fireman as defined by the Fire Brigade Pensions Act, 1925, or in respect of any service of his which, by or under any enactment, is treated as approved service in a fire brigade, or granted in consideration of the surrender of a part of any such pension as aforesaid.

4. Any such pension as is specified in paragraph (b) of subsection (1) of section eight of the Pensions (Increase) Act, 1944 (which relates to compensation for loss of office) being a pension payable by a local authority.

5. Any pension in relation to which the Pensions (Increase) Act, 1944, has effect, by virtue of any Order in Council in force at the commencement of this Act under section four of that Act, as if it were a pension specified in Part II of the First Schedule to that Act.

SECOND SCHEDULE

RATE OF INCREASE OF PENSIONS

Sections 1, 2, 3.

1. Subject to the provisions of this Schedule, the increase which may be made under section one of this Act (in this Schedule referred to as the authorised increase) in the case of a pension beginning at any time specified in the first column of the following Table shall be at the annual rate specified in relation thereto—

- (a) where the pensioner is married or has at least one dependant, in the second column of that Table;
- (b) where the pensioner is not married and has no dependants, in the third column of that Table.

TABLE

Time of beginning of pension	Annual rate where pensioner is married or has at least one dependant	Annual rate where pensioner is unmarried and has no dependants
Before 1st April, 1948...	£ 26	£ 20
During the year ended 31st March, 1949 ...	21	16
During the year ended 31st March, 1950 ...	16	
During the year ended 31st March, 1951 ...	11	8
During the year ended 31st March, 1952 ...	6	4

2ND SCH.
—*cont.*

2. The authorised increase shall not in any case exceed one-third of the annual rate of the pension, calculated by taking into account any increase granted under the Pensions (Increase) Acts, 1944 and 1947.

3. The authorised increase shall not in any case exceed the amount which is necessary to increase the income of the pensioner to the sum specified in his case in subsection (2) of section one of this Act.

4. Where the pensioner is in receipt of more than one relevant pension, the authorised increases in respect of both or all of those pensions shall not in the aggregate exceed the amount which would represent the authorised increase if he were in receipt of a single pension at a rate equal to the aggregate of the rates of those pensions and beginning at the time when the earliest of them began; and where the said increases, as ascertained apart from this paragraph, would exceed that amount, the authorised increase in the case of each of the pensions shall be calculated by dividing that amount between them in proportion to the said increases as ascertained as aforesaid.

5. Where two persons being husband and wife are each in receipt of a relevant pension, then—

(a) if one of those pensions has been granted by the pension authority in consideration of the surrender of part of the other pension under any arrangement providing for such surrender and grant, paragraph 4 of this Schedule shall apply as if the pensioner by whom the said part was surrendered were in receipt of each of those pensions;

(b) in any other case, the authorised increases in respect of the pensions shall not in the aggregate exceed the amount mentioned in paragraph 3 of this Schedule, and where the said increases, as ascertained apart from this sub-paragraph, would exceed that amount, the authorised increase in respect of each of the pensions shall be ascertained by dividing that amount between them in proportion to the said increases as so ascertained.

6. In relation to a person who is in receipt of a relevant pension and is also in receipt of another pension, being—

(a) a service pension as defined by paragraph 1 of the Second Schedule to the Pensions (Increase) Act, 1944; or

(b) a pension (not being a relevant pension or a service pension) in the case of which an increase is payable under any scheme (wherever in force and whether or not authorised by or under any enactment) determined by the Treasury for the purposes of this paragraph to be similar to the provisions of this Act,

paragraphs 4 and 5 of this Schedule shall apply for the purpose of ascertaining the authorised increase of the relevant pension as if that other pension were also a relevant pension; but paragraph 8 of the Second Schedule to the Pensions (Increase) Act, 1944 (which requires certain service pensions to be disregarded for the purposes of paragraph 7 of that Schedule) shall have effect as if any reference to the said paragraph 7 included a reference to sub-paragraph (a) of this paragraph.

2ND SCH.
—cont.

7. Where a pensioner is in receipt of a relevant pension payable in respect of the services of the pensioner's deceased spouse, and any other relevant pension payable in respect of those services is paid to the pensioner for the benefit of any other person, the authorised increases in respect of those pensions shall not in the aggregate exceed the amount which would represent the authorised increase in respect of a single pension at a rate equal to the aggregate of the rates of those pensions and payable to a pensioner having at least one dependant and no other income; and where the said increases, as ascertained apart from this paragraph, would exceed that amount, the authorised increase in the case of each of the pensions shall be calculated by dividing that amount between them in proportion to the said increases as ascertained as aforesaid.

8. If, in a case to which paragraph 7 of this Schedule does not apply, two or more relevant pensions, being—

(a) pensions payable under Part I or Part II of the Superannuation Act, 1949, in respect of children or nominees of the same person; or

(b) pensions payable in accordance with a warrant issued or having effect as issued under section forty-one of that Act in respect of children of the same person;

are paid to one person for the benefit of the pensioners, the authorised increases in respect of both or all of those pensions shall not in the aggregate exceed the amount which would represent the authorised increase in respect of a single pension at a rate equal to the aggregate of the rates of those pensions payable to an unmarried pensioner having no dependant and no other income; and where the said increases, as ascertained apart from this paragraph, would exceed that amount, the authorised increase in the case of each of the pensions shall be calculated by dividing that amount between them in proportion to the said increases as ascertained as aforesaid.

9. In this Schedule "relevant pension" means a pension in respect of which an increase is authorised or required to be made under section one of this Act.

10. For the purposes of this Schedule a person for whose benefit a pension is payable shall be deemed to be in receipt of the pension notwithstanding that it is payable to some other person.

THIRD SCHEDULE

PROVISIONS OF PENSIONS (INCREASE) ACT, 1944, APPLIED TO THIS ACT

Section 4.

<i>Provision</i>	<i>Subject Matter</i>
Subsections (2) to (4) of section one	Restrictions upon the circumstances in which a pension may be increased under section one.
Subsections (5) and (6) of section one	Interpretation of section one.
Subsection (7) of section one	Obligation of pension authorities to increase pensions specified in Part II of the First Schedule.

3RD SCH.
—cont.

<i>Provision</i>	<i>Subject Matter</i>
Subsection (1) of section three	Regulations as to calculation of income of pensioners for purposes of section one and the Second Schedule.
Subsection (5) of section three	Regulations prescribing procedure for making claims for increases under section one and other supplementary matters.
Subsection (8) of section three	Application to increases under the Act of statutory provisions as to apportionment of cost of pensions, manner of payment, proof of title and restrictions on assignment.
Section four	Extension of section one by Order in Council to pensions payable by local authorities other than pensions specified in Part II of the First Schedule.
Section six	Penalty for false statements for the purpose of obtaining sums payable under the Act.
Section seven	Application of section seven to any increase of service pensions corresponding with the increase under the Act.
Subsections (1) to (3) of section eight	Interpretation.
Section nine	Application of the Act to Scotland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Police Act, 1890	53 & 54 Vict. c. 45.
Special Constables Act, 1914	4 & 5 Geo. 5. c. 61.
Pensions (Increase) Act, 1920	10 & 11 Geo. 5. c. 36.
Police Pensions Act, 1921	11 & 12 Geo. 5. c. 31.
Pensions (Increase) Act, 1924	14 & 15 Geo. 5. c. 32.
Fire Brigade Pensions Act, 1925	15 & 16 Geo. 5. c. 47.
Teachers (Superannuation) Act, 1925	15 & 16 Geo. 5. c. 59.
Finance Act, 1932	22 & 23 Geo. 5. c. 25.
Pensions (Increase) Act, 1944	7 & 8 Geo. 6. c. 21.
Finance (No. 2) Act, 1945	9 & 10 Geo. 6. c. 13.
Police (Overseas Service) Act, 1945	9 & 10 Geo. 6. c. 17.
Superannuation Act, 1946	9 & 10 Geo. 6. c. 60.
Finance Act, 1946	9 & 10 Geo. 6. c. 64.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
Pensions (Increase) Act, 1947	10 & 11 Geo. 6. c. 7.
National Health Service (Scotland) Act, 1947	10 & 11 Geo. 6. c. 27.
Fire Services Act, 1947	10 & 11 Geo. 6. c. 41.
Police Pensions Act, 1948	11 & 12 Geo. 6. c. 24.
Superannuation (Miscellaneous Provisions) Act, 1948	11 & 12 Geo. 6. c. 33.
Superannuation Act, 1949	12, 13 & 14 Geo. 6. c. 44.
Administration of Justice (Pensions) Act, 1950... ..	14 & 15 Geo. 6. c. 11.